

**NEW YORK SUPREME COURT
COUNTY OF NEW YORK**

People v. Luigi Nicholas Mangione
Ind. No. 75657/2024

New York, New York
December 23, 2024

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MS. AGNIFILO: First we request immediate expedited discovery in this case. The People have had this case for about almost three weeks and that's more than enough time to gather as much information as they can give to us, especially now that we have two proceedings that we have to answer to, one of them being death-eligible. So we are requesting that we get immediate discovery of all the New York City Police Department and FBI and Federal and State documents.

And a second thing I want to make a record of, your Honor, I'm very concerned about my client's right to a fair trial in this case. He's being prejudiced by some statements that are being made by government officials.

Like every other defendant, he's entitled to a presumption of innocence, but unfortunately, the way this has been handled so far, his rights are being violated. And as you know, your Honor, there's a wealth of case law guaranteeing his right to a fair trial, but none of the safeguards have been put in place yet here. In fact, it's just the opposite of what's been happening.

He's a young man and he is being treated like a human ping-pong ball between two warring jurisdictions here. The Federal and State prosecutors are coordinating with one another at the expense of him. They have conflicting theories in their indictments and they are literally treating him like he is some sort of political fodder; like some sort of spectacle.

He was on display for everyone to see in the biggest staged perp walk I have ever seen in my career. It was absolutely unnecessary. He's been cooperative of law enforcement. He has been in custody for over a week. He waived extradition, he was cooperative at all accounts. There was no reason for the NYPD and everybody to have these big assault rifles, that frankly I had no idea was in their arsenal. And to have all of these the

press there, the media there, it was like perfectly choreographed. And what was the New York City mayor doing at this press conference, your Honor? That just made it utterly political.

And as your Honor knows, under Lauro V. Charles, the Court of Appeals for the Second Circuit has held it to be clearly established that the staged perp walks to the media unrelated to a legitimate law enforcement objective is unconstitutional, and I submit there was zero law enforcement objective to do that sort of perp walk. There was absolutely no need for that whatsoever.

And, frankly, your Honor, the mayor should know more than anyone of the presumption of innocence that he too is afforded when he dealing with his own issues. And frankly, I submit that he was just trying to detract from those issues by making a spectacle of Mr. Mangione. And there are consequences to this. He has a right to a fair trial.

And I just want to put on the record statements that the mayor made publicly about my client. Nothing saying "alleged", for example. And he said: "I wanted to send a strong message with the police commissioner that we're leading from the front and not going to just allow him to come into our city. I wanted to look him in the eye and state 'you carried out this terrorist act in my city, the City of New York that I love'."

And he wanted to show symbolism. Your Honor, he's not a symbol. He's somebody who is afforded the right to a fair trial. He's innocent until proven guilty. And the mayor was talking to jurors, future potential jurors, that elected him, those are the people that elected him that he is talking to and calling this man a terrorist.

So, your Honor, I just wanted to make a record of this and put everyone on notice that this has to stop. My client is it entitled to a fair trial and the presumption of innocence. And we're going to fight these charges, whether it's in the State or Federal, to the fullest extent.

Thank you, your Honor.

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